

Draft for exact-file review

Proposed language. Accepted source facts retain their original status. No execution, filing, payment or clearance is established by this edition.

ARU individual retention agreements and Tolman consultancy

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Authority: Markdown controls this draft; JSON is its structured companion.

1. Parties, incorporation and individual acceptance

This proposed retention instrument comprises common clauses 1–9 and eight separate employee schedules. Each schedule is an individual offer, not a collective promise that acceptance by one employee binds the others. The accepted entity register identifies the employing entity for each named recipient below. Before signature, People & Culture shall confirm that no later accepted employment change affects the schedule. ARU administers the transition programme; administration does not substitute ARU for the employing railway entity or transfer a represented employee into another employer. The individual schedule and common clauses shall be signed together. No employee address, tax identifier, payroll account or signature is reproduced here.

The retained source programme begins January 7, 2026. Preparing these fuller clauses on September 12 does not establish that they were signed in January or supersede a prior signed instrument. Before adoption, Legal shall identify whether this is a prospective agreement, a reconstruction of accepted terms or an amendment requiring individual consent. The retained service and installment dates remain visible so that an accounting reader can compare this proposal with the existing case model without treating the proposal as additional compensation.

2. Retention consideration and payment

The Company shall provide only the total retention award specified in the employee's schedule, subject to qualifying service and clause 3. Half of that award corresponds to the July 7, 2026 installment and half to January 7, 2027. The programme totals \$500,000; no schedule adds another award to that pool. These dates describe source obligations, not bank settlement. Payment status for each installment remains unestablished by this instrument, including installments whose dates precede preparation.

The Company shall account for retention as service compensation, separately from the price paid for shares, any seller consultancy, ordinary salary and reimbursement. Continued employment, safe operational continuity and transfer of ordinary working knowledge are the consideration. No award depends on a redundancy count, cost-cutting quota, forced customer preference, guaranteed mine volume or employee surrender of operating judgment. The Company shall provide an itemized payroll statement for any actual payment and apply only required or separately authorized deductions. No bank instruction is created by the award schedule.

3. Service condition and protected departure

An employee who remains in qualifying service through an installment date earns the associated installment under the source programme. Death, disability or buyer termination without cause shall receive pro rata recognition of the unearned installment for completed service. As a proposed calculation convention, Finance shall divide calendar days of qualifying service in the applicable installment period by total calendar days in that period, cap the fraction at one and multiply it by that installment. The convention remains subject to review for applicable employment and payroll requirements; no separation date or resulting amount is assumed here.

Resignation or termination for cause forfeits only amounts unearned under the source protections, subject to mandatory rights and a written determination. Previously earned amounts are not automatically clawed back. Cause means substantiated fraud, theft, intentional falsification of material company records, deliberate serious safety misconduct or a material duty breach not cured after written notice and a reasonable opportunity where curable. This proposed fuller definition cannot be used to punish professional disagreement, safety stops, union representation, reporting concerns or refusing unsafe or unlawful work. Protected absence and disability accommodation must be evaluated before a service break is recorded.

4. Authority and continued employment terms

The award does not amend salary, job classification, collective bargaining terms, grievance routes or property-specific safety obligations. Nora retains day-one ARU President/COO authority; Seth retains BS&T operating command. A financial approver does not thereby receive dispatch authority. An employee shall refer a request outside their authority to the responsible operating manager rather than rely on this instrument as delegation. No minimum employment term or general severance plan is created.

The Company shall not condition payment on waiving accrued pay, protected reporting, lawful representation or independent assurance. Any separate release must be separately reviewed and must not be implied by accepting an installment. An employee may seek a correction of their service record without suspension of undisputed earned compensation. This proposal creates no automatic transfer of employee personal information into a public case publication.

5. Service records, disputes and amendments

People & Culture shall maintain the individual accepted schedule, employer verification, service record, installment calculation and any protected-departure determination. Finance shall reconcile eight awards to the \$500,000 total and two \$250,000 installment populations. The payment register must separately identify approved, accrued, due, paid and disputed amounts; an accounting model is not a payment confirmation.

The employee may challenge a calculation in writing to People & Culture. The Company shall provide the service-period basis and arithmetic, permit correction and refer an unresolved substantive dispute to the appropriate independent employment review route. Proposed administrative response time is fifteen business days after receipt, without shortening mandatory rights. An amendment must identify the changed clause, financial effect and authorized approvals. Silence, a spreadsheet edit or Fred's recollection does not amend an award.

6. Confidentiality, records and survival

Employees shall protect company and customer confidential information received in their duties, subject to lawful reporting and disclosure rights. This retention agreement does not itself impose a noncompete, assign unrelated personal inventions or prevent disclosure to authorized advisers. Ordinary employment confidentiality and records duties continue on their existing basis. On departure, company records and equipment shall be returned through the normal custody process; a dispute concerning property does not authorize withholding compensation contrary to applicable requirements. Clauses concerning earned amounts, records, correction and lawful confidentiality survive to the extent needed to administer the award.

7. Individual retention schedules

Each schedule below incorporates clauses 1–6 and requires separate employee and employer acceptance. Role descriptions identify the source context; they do not appoint a person or change employment authority. Known employers are identified below; signatory authority, acceptance date and actual payment evidence remain to be completed from approved records.

Schedule RET-01 — Nora Ashcombe

The proposed individual award for Nora Ashcombe, identified in the source as ARU President/COO, is **\$100,000 USD**. The first installment is **\$50,000**, corresponding to July 7, 2026; the second is **\$50,000**, corresponding to January 7, 2027. Clauses 2–3 govern service and protected departure. This schedule authorizes no duplicate award, automatic salary change or payment representation. The source employer is **American Resource Utility, Inc. (ARU)**. Authorized signatory and employee acceptance remain unestablished, as do both payment statuses.

Schedule RET-02 — Gareth Pike

The proposed individual award for Gareth Pike, identified in the source as retained ARU operating leader, is **\$60,000 USD**. The first installment is **\$30,000**, corresponding to July 7, 2026; the second is **\$30,000**, corresponding to January 7, 2027. Clauses 2–3 govern service and protected departure. This schedule authorizes no duplicate award, automatic salary change or payment representation. The source employer is **American Resource Utility, Inc. (ARU)**. Authorized signatory and employee acceptance remain unestablished, as do both payment statuses.

Schedule RET-03 — Tessa Rourke

The proposed individual award for Tessa Rourke, identified in the source as ARU Controller, is **\$60,000 USD**. The first installment is **\$30,000**, corresponding to July 7, 2026; the second is **\$30,000**, corresponding to January 7, 2027. Clauses 2–3 govern service and protected departure. This schedule authorizes no duplicate award, automatic salary change or payment representation. The source employer is **American Resource Utility, Inc. (ARU)**. Authorized signatory and employee acceptance remain unestablished, as do both payment statuses.

Schedule RET-04 — Owen Halberg

The proposed individual award for Owen Halberg, identified in the source as retained ARU operating leader, is **\$50,000 USD**. The first installment is **\$25,000**, corresponding to July 7, 2026; the second is **\$25,000**, corresponding to January 7, 2027. Clauses 2–3 govern service and protected departure. This schedule authorizes no duplicate award, automatic salary change or payment representation. The source employer is **American Resource Utility, Inc. (ARU)**. Authorized signatory and employee acceptance remain unestablished, as do both payment statuses.

Schedule RET-05 — Seth Kettering

The proposed individual award for Seth Kettering, identified in the source as BS&T General Manager, is **\$80,000 USD**. The first installment is **\$40,000**, corresponding to July 7, 2026; the second is **\$40,000**, corresponding to January 7, 2027. Clauses 2–3 govern service and protected departure. This schedule authorizes no duplicate award, automatic salary change or payment representation. The source employer is **Blood, Sweat & Tears Railway Company (BST)**. Authorized signatory and employee acceptance remain unestablished, as do both payment statuses.

Schedule RET-06 — Derek Fenwick

The proposed individual award for Derek Fenwick, identified in the source as retained operating leader, is **\$50,000 USD**. The first installment is **\$25,000**, corresponding to July 7, 2026; the second is **\$25,000**, corresponding to January 7, 2027. Clauses 2–3 govern service and protected departure. This schedule authorizes no duplicate award, automatic salary change or payment representation. The source employer is **American Resource Utility, Inc. (ARU)**. Authorized signatory and employee acceptance remain unestablished, as do both payment statuses.

Schedule RET-07 — Marta Ellery

The proposed individual award for Marta Ellery, identified in the source as retained operating leader, is **\$50,000 USD**. The first installment is **\$25,000**, corresponding to July 7, 2026; the second is **\$25,000**, corresponding to January 7, 2027. Clauses 2–3 govern service and protected departure. This schedule authorizes no duplicate award, automatic salary change or payment representation. The source employer is **American Resource Utility, Inc. (ARU)**. Authorized signatory and employee acceptance remain unestablished, as do both payment statuses.

Schedule RET-08 — Inez Calderon

The proposed individual award for Inez Calderon, identified in the source as retained operating leader, is **\$50,000 USD**. The first installment is **\$25,000**, corresponding to July 7, 2026; the second is **\$25,000**, corresponding to January 7, 2027. Clauses 2–3 govern service and protected departure. This schedule authorizes no duplicate award, automatic salary change or payment representation. The source employer is **American Resource Utility, Inc. (ARU)**. Authorized signatory and employee acceptance remain unestablished, as do both payment statuses.

8. Separate Fred Tolman consultancy

ARU and Fred Tolman would enter a separate service agreement for the source term January 7 through October 7, 2026, with total consideration of \$225,000, earned as knowledge-transfer services are performed. This is not a ninth retention award and not additional seller consideration. Nora commissions and accepts the work. No period of work is certified complete merely because its planned end date has passed.

Fred shall deliver a documented account of customer history, commercial commitments, property and maintenance context, counterpart introductions and failed-expansion lessons. Months 1–3 address customer and property read-backs; months 4–6 reconcile maintenance, claims and history; months 7–9 support successor-led handover and remaining-question closure. Each submission shall distinguish first-hand knowledge, recollection, source documents and unresolved contradiction. Fred shall provide underlying records he may lawfully supply and shall not recreate signatures, payment proofs or customer commitments from memory.

Nora shall accept a submission only after confirming that it answers the commissioned questions or identifying specific deficiencies for correction. Tessa reviews financial or contractual recollections before they enter the books or a commitment register. The \$225,000 ceiling covers the entire accepted source scope. Proposed invoicing is monthly against documented service, with cumulative earned compensation and prior payments shown; this draft does not impose an unsupported equal-month installment or declare any amount paid. Additional expenses require advance written authorization and source receipts; they do not silently enlarge the source fee.

9. Consultant restrictions and closing delivery

Fred has no authority to dispatch, authorize movement, hire or dismiss, direct employees, approve capital, bind contracts, vary credit terms or conduct private negotiations for ARU. Requests to operating staff shall go through Nora's delegated channel. Introductions must identify Fred as consultant and current management as the decision-maker. An apparent historic promise shall be logged as evidence for review, not automatically honored.

The consultant shall protect confidential records, disclose conflicts affecting an assignment, refrain from using third-party information he cannot lawfully disclose, and return company material at close. Proposed termination for material breach allows written notice and a reasonable correction opportunity where curable; urgent safety or confidentiality concerns permit immediate suspension of the affected activity. Compensation for accepted services remains separately evaluated; the draft creates neither a guaranteed unperformed fee nor a fictional refund.

At close, Fred shall deliver an indexed handover of submissions, source records, introductions, accepted corrections and unanswered questions. Nora shall record accepted and outstanding deliverables, and Finance shall reconcile earned fee to payments supported by actual evidence. Signatures for ARU and Fred, acceptance date, payment ledger and any actual termination remain blank and unestablished. Applicable law, notice addresses and enforceability review are completion conditions, not invented jurisdictional conclusions.

Source record and approval boundary

- `industrial/source/entities.json`
- `industrial/transaction/06_ARU_TRANSITION_AND_RETENTION.md`
- `industrial/corporate/LEADERSHIP_AND_AUTHORITY.md`
- `industrial/source/finance.json`

No signatures, payments, provider acceptance or external filing are established by this draft. Its proposed clauses become neither accepted canon nor effective obligations through rendering, indexing or validation. Approval must identify the exact instrument and any completed schedules.